

Rules & Regulations

The Villas at Worthington Homeowners Association, Inc.

North Royalton, Cuyahoga County, Ohio

Adopted by the Board of Directors, 2026

Purpose and Authority

These Rules & Regulations implement and operationalize the use restrictions already set out in Article IX of the Declaration (Sections 9.1.1 through 9.1.9). The Board enforces those restrictions under Section 9.3 (Remedies for Breach) following the notice-and-hearing procedure in Section 7.5, and may levy reasonable fines under Section 6.3.13. The Board may adopt, amend, or repeal these Rules by resolution, without a vote of the owners.

How this fits with the other documents. The recorded Declaration (Instrument 200805080525) and the Bylaws / Code of Regulations (Instrument 201403260491) are the controlling documents and always prevail. These Rules operationalize the Declaration's use restrictions and add reasonable detail; they do not replace it and cannot permit what the Declaration prohibits or prohibit what it permits. Architectural and exterior-appearance standards are kept separately in the Design Guidelines. If a Rule ever conflicts with the Declaration or Bylaws, those control.

Enforcement. Violations are enforced under Declaration Section 9.3 (fines, abatement, and legal action) following the notice-and-hearing procedure in Declaration Section 7.5. Nothing in these Rules creates a separate or different enforcement process.

1. Pets and Animals

Authority: Declaration Section 9.1.7.

Ordinary household pets kept for non-commercial purposes (dogs, cats, caged birds, and similar) are permitted. Keeping, boarding, breeding, or raising livestock, poultry, fowl (including chickens), or any other farm or commercial animals is prohibited.

Pets may not be kept or bred for commercial purposes. No external compound cages, kennels, or hutches are permitted.

Pets must be leashed or otherwise controlled when outside the owner's lot, including on common areas and open space.

Owners are responsible for promptly cleaning up after their pets on any lot or common area.

Pets must not be allowed to create a nuisance, including persistent noise, that disturbs other residents (see also Rule 4).

2. Vehicles, Parking, and Storage

Authority: Declaration Section 9.1.6.

Recreational vehicles, trailers, campers, boats, and similar large vehicles may be kept on the property only inside garages, except as allowed below.

A recreational vehicle or boat may be parked in a driveway for no more than seventy-two (72) consecutive hours, and only for active loading, unloading, cleaning, or maintenance.

Commercial trucks bearing logos or racks may be parked on the property only inside garages.

No junk, inoperable, or unregistered vehicle (one without current registration plates displayed) may be kept anywhere on the property except inside a garage.

Vehicle repairs and vehicle storage are permitted only inside garages.

Vehicles may not be parked on lawns, landscaped areas, or common areas.

3. Trash and Recycling

Authority: Declaration Section 9.1.5.

No accumulation or outdoor storage of litter, refuse, bulk materials, or trash is permitted on any lot, except in connection with active construction.

Trash and recycling containers must be kept out of public view except on collection days. They may be placed at the curb no earlier than the evening before collection and must be returned to their storage location by the end of collection day.

Any front-facing bin enclosure must meet the size and materials standards in the Design Guidelines (its construction is an architectural matter).

No incinerator or outdoor burning of trash is permitted (see also Declaration Section 9.1.8).

4. Noise and Nuisance

Authority: Declaration Sections 9.1.2 and 9.1.3.

No person may create unreasonably loud noise (security devices excepted) or engage in any activity intended to cause annoyance, discomfort, or disturbance to others lawfully present in the community.

Residents are asked to keep noise to considerate levels, particularly between 10:00 p.m. and 8:00 a.m.

No emission of dust, odors, or other substances, and no discharge of waste, beyond normal residential activity that adversely affects neighbors' use or comfort.

5. Holiday and Seasonal Decorations

Authority: Board rule under Declaration Section 9.3; reflects community practice.

Holiday and seasonal decorations are permitted.

Decorations must be removed within forty-five (45) days after the associated holiday.

Lighting displays should be considerate of neighbors and must not create a traffic hazard.

Music or sound-producing decorations must be operated at reasonable volume levels and are subject to Rule 4.

Decorations must not block sidewalks or other public access ways.

6. Leasing and Occupancy

Authority: Declaration Section 1.12 (Dwelling Unit) and Section 9.1.1 (No Trade or Business); Bylaws Article VII, Section 5 (Records of Owners).

Each dwelling is intended for use as a single-family residence. No trade or business may be conducted from a lot except as the limited home-occupation exception in Declaration Section 9.1.1 (No Trade or Business) allows.

Any lease must be of the entire dwelling unit, and the lease is subject to the Declaration, Bylaws, these Rules, and the Design Guidelines. The owner remains responsible for the conduct of tenants and guests.

Within the time the Bylaws require, an owner who leases or sells must provide the Association the owner's and any occupant's contact information and the name and contact of any managing agent.

7. Common Areas and Open Space

Authority: Declaration Sections 4.2.6 (Preservation Easement), 5.6, and 9.1.2.

The open space, conservation/preservation easement areas, wetlands, and retention basin must be left in their natural condition. No dumping of yard waste, debris, fill, or any material is permitted in these areas.

No cutting, clearing, or chemical treatment of trees, shrubs, or vegetation within preservation-easement areas, and no construction, fences, or structures within them.

Nothing may be done that obstructs or alters the surface-water management system (swales, ditches, basins) or changes the approved lot grading.

8. Architectural-Review Appeals

Authority: Board rule under Declaration Section 9.2 and Bylaws Article V, Section 3 (Architectural Control Committee).

An owner whose architectural request is denied by the Architectural Control Committee or the Board may appeal to the full Board within thirty (30) days of the decision.

Appeals must be in writing and state one or more grounds: new information; consistency with community aesthetics; comparable changes approved elsewhere; undue hardship; or procedural error.

The Board will consider the appeal at its next scheduled meeting and issue a written decision within fifteen (15) days. The owner may appear in person.

This appeal procedure applies only to architectural-review decisions. Notice and hearing for fines and individual assessments are governed separately by Declaration Section 7.5 and are not changed by this Rule.

9. Enforcement and Fines

Authority: Declaration Sections 7.4, 7.5, and 9.3.1.

The Board may enforce these Rules by levying a fine (which is also an individual assessment), abating the violation at the owner's expense, or pursuing legal action, as provided in Declaration Section 9.3.

Before imposing a fine, the Board will give the owner written notice and an opportunity to be heard under the procedure in Declaration Section 7.5, except in emergencies or for repeated or continuing violations.

The Board may adopt and publish a separate schedule of fine amounts by resolution.

10. Amendment

Authority: Article VI of the Declaration (Powers of the Association).

The Board may adopt, amend, or repeal these Rules by resolution at a duly held meeting, without a vote of the owners.

Owners will be notified of any new or amended Rule, and the change takes effect on the date the Board sets, after reasonable notice.

Adoption

These Rules & Regulations were adopted by the Board of Directors of The Villas at Worthington Homeowners Association, Inc. by resolution duly adopted on the _____ day of _____, 2026, and take effect after reasonable notice to the Owners.

President Date

Secretary Date

Appendix A — Schedule of Fines (Proposed)

This schedule is proposed for adoption by separate Board resolution under Section 9.3 and Section 6.3.13 of the Declaration. The amounts below are starting examples for the Board to set or adjust. All fines are individual assessments and are subject to the written-notice and hearing procedure in Declaration Section 7.5 before they are imposed.

First occurrence of a violation: written notice and an opportunity to cure (no fine).

Failure to cure, or a second occurrence of the same violation: \$25.

Third occurrence, or continued violation: \$50.

Each additional 30-day period the violation continues after notice: \$100.

Health, safety, or continuing violations may be abated by the Association at the Owner's expense under Section 9.3, in addition to any fine.

The Board may waive, reduce, or increase any amount, and may adopt a different schedule by resolution.